Unit 4 Indian Judiciary



Learning Objectives

PIK313



- To discuss the nature and significance of Indian Judiciary.
- To trace the evaluation of Indian Judiciary.
- To examine the features of the Indian Judiciary.
- To evaluate the role of the judiciary as the interpreter of the Constitution.
- To discuss the factors promoting the independence of Judiciary.
- To explain the nature and significance of Judicial Review, Public Interest Litigation and Judicial Activism.
- To know light on the nature of Constitutional Law, Administrative Law and Indian Penal Code.
- To explain the Organisation, Power and Functions of the Supreme Court of India.
- To know light on the Organisation, Powers and Functions of the High Courts and Sub-ordinate Courts.

What does the judiciary exactly do? I see people trusting the judiciary more than the legislature and the executive. Whenever their rights are violated, they look up to the judiciary and are so confident that their rights and privileges will be safeguarded.

Supreme Court of India

Quotable quote

"The Supreme Court, an all-India Court, will stand firm and aloof from party politics and political theories. It is unconcerned with the changes in the Government. The Court stands to administer the law for the time being in force, has goodwill and sympathy for all, but is allied to none"- Hon'ble Sri Harilal J. Kania, First Chief Justice of India.

The judiciary is one of the three organs of the government, the other two being the Legislature and the Executive. The judiciary is engaged in the interpretation of law and serves as a protector of the Constitution. It guarantees the administration of justice and protects the individual from encroachments of rights and privileges by the government and other individuals. The establishment of an independent and impartial judiciary is a pre-requisite for the functioning of a civilized state. The judiciary assumes greater importance in a federal polity

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